RESOLUTION NO.

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF PASADENA, CALIFORNIA, CALLING OF A GENERAL MUNICIPAL ELECTION TO BE HELD IN THE CITY OF PASADENA, CONSOLIDATED WITH THE STATEWIDE GENERAL ELECTION HELD ON TUESDAY, NOVEMBER 3, 2026, FOR THE PURPOSE OF SUBMITTING TO THE VOTERS OF THE CITY OF PASADENA AN ORDINANCE ADDING CHAPTER 4.110 OF TITLE 4 OF THE PASADENA MUNICIPAL CODE, PASADENA FIRE, WILDFIRE, EMERGENCY PREPAREDNESS AND RESPONSE PARCEL TAX, SUBJECT TO THE APPROVAL OF TWO-THIRDS OF THE VOTES CAST BY VOTERS VOTING ON THE CITY OF PASADENA 911 FIREFIGHTER/PARAMEDIC EMERGENCY MEDICAL/WILDFIRE PREPAREDNESS/RESPONSE MEASURE

WHEREAS, on July 13, 2026, following a presentation by City staff on a proposed City of Pasadena 911 Firefighter/Paramedic Emergency Medical/Wildfire Preparedness/Response Measure ("Measure"), the Pasadena City Council directed staff to prepare the necessary resolutions to place the Measure on the November 3, 2026 General Municipal Election ballot;

WHEREAS, on January 12, 2026, in relevant part, the City Council adopted Resolution No. 10170, calling a Primary Municipal Election for Tuesday, June 2, 2026 and a General Municipal Election for Tuesday, November 3, 2026, requesting that the Board of Supervisors of the County of Los Angeles approve the consolidation of the Statewide General Election, and direct the Los Angeles County Registrar-Recorder/County Clerk to administer said elections on behalf of the City; and

WHEREAS, in compliance with California Elections Code Section 9222, said Measure shall be submitted to the voters at the November 3, 2026 General Municipal Election, which is subject to the approval of two-thirds of the votes cast by voters voting on the proposal within the City of Pasadena.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Pasadena, California, as follows:

SECTION 1. That pursuant to the requirements of California Elections Code Section 10403, the Board of Supervisors is requested to consent and agree to the consolidation of the City's General Municipal Election with the Statewide General Election to be held on Tuesday, November 3, 2026, for the purpose of submitting the City of Pasadena 911 Firefighter/Paramedic Emergency Medical/Wildfire Preparedness/Response Measure; and to direct the Registrar-Recorder/County Clerk to perform all necessary functions, services, and tasks related to: the complete and successful conduct of said consolidated elections; the provision of all election materials and equipment; the hiring, training and supervision of election workers and other election personnel; the printing and distribution of ballot materials; the translation of ballot materials; the administration of vote by mail processing and signature verification; the collection of submitted ballots; the tallying of votes; and the canvassing and certification of election results.

SECTION 2. The City Council, pursuant to its right and authority, does order submitted to the voters of the City of Pasadena at the General Municipal Election, to be consolidated with the Statewide General Election on November 3, 2026, the following question:

City of Pasadena 911 Firefighter/Paramedic Emergency Medical/Wildfire Preparedness/Response Measure. To help maintain fire, paramedic, 911 response; prepare for/ respond to wildfires/earthquakes/medical emergencies; recruit/retain well-trained firefighters; maintain lifesaving equipment/fire alert communication; shall City of Pasadena's measure annually levy 19¢ per square foot of improved property, with low-income senior exemption, providing approximately $22,100,000 annually, expiring after 14 years, requiring accountability, independent audits, oversight, public spending disclosure; all funds must be used to support local fire protection/emergency medical response services, be adopted?	**YES**	
	NO	

SECTION 3. The Pasadena Fire, Wildfire, Emergency Preparedness and Response Parcel Tax ordinance, adding chapter 4.110 of Title 4 of the Pasadena Municipal Code, subject to the approval of two-thirds of the votes cast by voters voting on the proposal within the City of Pasadena is attached hereto as Exhibit "A" and incorporated herein by this reference.

SECTION 4. The ballots to be used at the election shall be in form and content as required by law.

SECTION 5. The Vote Centers for the consolidated elections shall be open as required during the identified voting period, pursuant to Election Code Sections 4007 and 14404.

SECTION 6. The Los Angeles County Registrar-Recorder/County Clerk is authorized to canvass the returns of the Measure, and to certify the same to the City Council of the City of Pasadena at the time and in the manner provided by law. The vote requirement for passage of the Measure shall be a 2/3 majority of votes cast by voters voting on the proposal within the City of Pasadena. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used.

SECTION 7. That the City of Pasadena recognizes that additional costs will be

incurred by the County by reason of these consolidated elections and agrees to reimburse the County for the City's share of election related costs resulting from said consolidations. The City director of finance is authorized and directed to pay out of the General Fund of the City a sum equal those costs upon the completion of the services as described above and upon presentation to the City of a bill.

SECTION 8. In all particulars not recited in this Resolution, the election hereby called shall be held and conducted as provided by law for holding municipal elections in said City.

SECTION 9. That the City Clerk is directed to forward without delay to the Board of Supervisors and to the Registrar-Recorder/County Clerk, each a certified copy of this Resolution.

SECTION 10. That the Board of Supervisors is requested to issue instructions to the Registrar-Recorder/County Clerk to take any and all steps necessary for the holding of these consolidated elections.

SECTION 11. That the City Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original Resolutions.

SECTION 12. Notice of the time and place of holding the election is given and the City Clerk is authorized, instructed and directed to give further or additional notice of the election, in time, form and manner as required by law.

Adopted at the regular meeting of the City Council on the _____ day of August, 2026, by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

_____
Mark Jomsky, City Clerk

APPROVED AS TO FORM:

_____
Michele Beal Bagneris
City Attorney/City Prosecutor

EXHIBIT A

ORDINANCE NO.

AN ORDINANCE OF THE CITY OF PASADENA ADDING CHAPTER 4.110 TO TITLE 4 OF THE PASADENA MUNICIPAL CODE, PASADENA FIRE, WILDFIRE, EMERGENCY PREPAREDNESS AND RESPONSE PARCEL TAX, SUBJECT TO THE APPROVAL OF TWO-THIRDS OF THE VOTES CAST BY VOTERS VOTING UPON THE PROPOSAL WITHIN THE CITY OF PASADENA

WHEREAS, the Pasadena Fire Department has served residents for more than 135 years, providing essential fire protection, paramedic care, rescue operations, wildfire mitigation, and all hazard emergency response; and

WHEREAS, modern fire and emergency medical response requires an integrated public safety system that includes professionally trained firefighters and paramedics, properly located and well maintained fire stations, modern engines and rescue ambulances, reliable emergency communications technology, lifesaving equipment, prevention programs, and sufficient staffing to respond effectively to multiple emergencies, including enhancements to wildfire readiness, brush and debris removal, and other life-safety programs; and

WHEREAS, many Pasadena fire stations, some built more than sixty years ago, require substantial modernization, reconstruction, or full replacement in order to accommodate current emergency response apparatus, operational needs, staffing levels, and industry standard safety requirements; and

WHEREAS, fire stations are critical public safety infrastructure that must remain operational before, during, and after earthquakes, wildfires, major storms, and other natural or human caused disasters, yet deferred capital investment jeopardizes seismic resilience, operational readiness, and the Fire Department's ability to provide life saving emergency response; and

WHEREAS, wildfire, windstorm, and climate driven emergency risks have increased, as illustrated by incidents such as the Eaton Fire, necessitating expanded prevention, mitigation, detection, communications, equipment upgrades, and resilient facilities capable of supporting sustained emergency operations; and

WHEREAS, emergency medical service (EMS) calls now comprise the majority of Fire Department responses, requiring modernized facilities, upgraded lifesaving equipment, enhanced communications systems, and adequate staffing to maintain timely paramedic service and 911 emergency medical response; and

WHEREAS, wildfire prevention and mitigation are fundamental components of public safety and require sustained investments in brush inspections and clearance, fire prevention programs, public education, early detection, emergency communications systems, firefighting resources, and rapid response capability; and

WHEREAS, the Pasadena Fire Department's long term planning has identified the need to modernize and replace aging fire stations, expand emergency response staffing and apparatus, increase EMS capacity, and maintain reliable citywide emergency coverage, including reconstruction of Fire Stations 33 and 37, construction of an additional fire station, development of a training center and Fire headquarters, modernization of the City's 911 emergency response system, and addition of critical personnel, equipment, and operating resources; and

WHEREAS, the Pasadena Fire Department's 2026–2036 Strategic Plan establishes priorities to ensure that Department facilities, apparatus, equipment, training, staffing, and technology meet current industry standards, support future infrastructure needs, and achieve or exceed national standards for emergency response; and

WHEREAS, delaying necessary fire station improvements, apparatus replacement, communications system upgrades, and other public safety investments increases future costs and may limit the City's ability to respond effectively to growing emergency service demands; and

WHEREAS, the City has balanced recent General Fund budgets using one-time revenues and reserves, while ongoing expenditures and service demands continue to grow faster than ongoing revenues, limiting the City's ability to finance long term Fire Department infrastructure and operational needs through existing resources alone; and

WHEREAS, the City Council has identified modernization of Fire Department facilities, enhanced fire prevention programs, emergency response staffing, training facilities, equipment, and long-term capital planning as essential public safety priorities for the Pasadena community; and

WHEREAS, a special parcel tax is an appropriate and necessary funding mechanism to support essential public safety infrastructure, providing stable, locally controlled revenue exclusively for Fire Department capital improvements and enhanced emergency response services; and

WHEREAS, dedicated parcel-tax revenues will be deposited into a special fund and used exclusively for capital and operational needs. These funds will support the construction, repair, replacement, and modernization of fire stations, Fire headquarters, training facilities, communications systems, apparatus, equipment, and other essential capital improvements. Additionally, parcel-tax revenues may be used for debt service related to these capital expenditures, enabling the City to responsibly finance major infrastructure projects and maintain fiscal sustainability. The funds will also be used to

enhance emergency response, fire protection, emergency medical response, wildfire readiness, brush and debris removal, and other life-safety programs; and

WHEREAS, the Measure would require annual independent financial audits, public disclosure of all Measure revenues and expenditures, and periodic reports demonstrating that proceeds have been used only for voter authorized purposes; and

WHEREAS, the City Council desires to submit to the qualified voters of the City a measure authorizing a special parcel tax (City of Pasadena 911 Firefighter/Paramedic Emergency Medical/Wildfire Preparedness/Response Measure) to fund the fire protection, emergency medical response, wildfire prevention, and fire facility and equipment needs described herein; and

WHEREAS, the City Council wishes to submit this City of Pasadena 911 Firefighter/Paramedic Emergency Medical/Wildfire Preparedness/Response Measure to the voters at the November 3, 2026 Municipal Election.

NOW, THEREFORE, the People of the City of Pasadena ordain as follows:

SECTION 1. Chapter 4.110 of the Pasadena Municipal Code is hereby added with the following:

"Chapter 4.110
PASADENA WILDFIRE, EMERGENCY PREPAREDNESS AND RESPONSE PARCEL TAX

SECTIONS:

4.110.110 Short title.
4.110.120 Definitions.
4.110.130 Exemptions.
4.110.140 Special Tax.
4.110.150 Purpose.
4.110.160 Parcel Tax Fund Allocation and Baseline
4.110.170 Tax rate.
4.110.180 Adjustments and refunds.
4.110.190 Oversight, Audit, and Public Disclosure.
4.110.200 Amendments.
4.110.210 Severability.
4.110.220 Effective date.
4.110.230 Debt Service Completion Requirement Upon Recall or Repeal
4.110.240 Sunset Provision

4.110.110 Short Title

This chapter shall be known and may be cited as the “Pasadena Fire, Wildfire, Emergency Preparedness and Response Parcel Tax.”

4.110.120 Definitions

The following words and phrases whenever used in this chapter shall be construed as defined in this section:

A. “Fire Department” means the Pasadena Fire Department and its facilities, apparatus, operations, and emergency-response services.

B. “Parcel” means a unit of real property as shown on the last equalized assessment roll of Los Angeles County.

C. “Pasadena Fire, Wildfire, Emergency Preparedness and Response Parcel Tax Fund” means the special fund in which money collected pursuant to this chapter shall be deposited.

D. “Capital Improvements” means the construction, repair, replacement, modernization, or expansion of Fire Department facilities and infrastructure. This includes fire stations, training centers, Fire headquarters, emergency response facilities, seismic retrofits, facility upgrades, technology systems, acquisition of fire apparatus, rescue ambulances, emergency medical equipment, equipment for brush and debris removal, and debt service related to these capital expenditures.

E. “Baseline Service Level” means the average annual Fire Department budget for the three fiscal years prior to the effective date of this ordinance, and the front-line services provided by the Fire Department as of the effective date of this ordinance.

4.110.130 Exemptions

A. Nothing in this chapter shall be construed as imposing a tax upon any person when imposition of such tax would be in violation of either the Constitution of the United States or the Constitution of the State of California.

B. The tax imposed by this chapter shall not be levied upon the federal government, the state government, any state agency, or any local governmental agency.

C. The tax imposed by this chapter shall not be levied upon a parcel of

property or improvement to property which is owned by a religious facility or community service organization which qualifies for an exemption from ad valorem taxation under California law.

D. The tax imposed by this chapter shall not be levied upon any owner if such owner receives a senior citizen or disability exemption from the utility user's tax imposed by Chapter 4.56 of the Pasadena Municipal Code.

E. The tax imposed by this chapter shall not be imposed upon any owner if such owner's annual household income does not exceed the U.S. Department of Housing and Urban Development (HUD) Very Low (50%) Income Limit for Los Angeles–Long Beach–Glendale for the calendar year for which the exemption is claimed.

4.110.140 Special Tax

A. A special parcel tax is hereby imposed upon each parcel within the City of Pasadena for the purposes set forth in this chapter at the rate specified in Section 7.

B. This tax is enacted under the authority of Section 301 of the Charter of the City of Pasadena, other authority held as a charter city, and, independently thereof, under California Government Code Sections 50075–50077.5.

4.110.150 Purpose

A. The purpose of this special tax is to provide funds to the City to pay:

1. Capital improvements for the Fire Department, including reconstruction of Fire Stations 33 and 37 within the first ten years, and the construction of an additional fire station, training centers and Fire headquarters, essential safety infrastructure, rescue ambulances, fire apparatus, equipment;

2. Enhancements to emergency-response, fire-protection, emergency medical response, wildfire readiness, brush and debris removal, and other life safety programs above the established baseline;

3. Costs of enforcement and administration of the tax, including refunds.

B. City costs of enforcement and administration, including refunds, shall be paid from the special tax revenue.

4.110.160 Parcel Tax Fund Allocation and Baseline

A. Establishment of Special Fund; Exclusive Use of Parcel Tax Funds

There is hereby established a special fund entitled the Pasadena Fire, Wildfire, Emergency Preparedness and Response Parcel Tax Fund ("special fund"). Money collected pursuant to this chapter shall be deposited into said special fund and shall be used exclusively to:

1. Construct, repair, replace, or modernize fire stations, training centers, Fire headquarters, fire apparatus, other essential emergency response equipment, brush and debris removal equipment, and other essential public safety infrastructure, including debt service related to these capital expenditures;

2. Enhance emergency-response, fire protection, paramedic service, wildfire readiness, brush and debris removal, and life safety programs.

Nothing in this section shall prevent disbursements from this special fund to reimburse the general fund if, and only if, money has been advanced from the general fund to pay for the uses provided for in this chapter.

B. Capital Improvement Prioritization

The City shall prioritize funding of Fire Department capital improvements using proceeds of the Pasadena Fire, Wildfire, Emergency Preparedness and Response Parcel Tax ("Parcel Tax") until completion. This prioritization does not obligate the City to maintain any specific General Fund appropriation.

C. Eligible Uses and Service Levels

Eligible uses of Parcel Tax funds include enhancements to service levels above the established baseline, including but not limited to:

- Staffing and deployment improvements
- Professional training and certification
- Upgrades to technology, communications, and alerting systems
- Prevention and wildfire mitigation programs
- Brush and debris removal
- Enhancements to emergency medical service response
- Maintenance and modernization of lifesaving equipment
- Recruitment and retention of qualified firefighters
- Facility upgrades to support emergency preparedness and response

Operating funds are supplemental and may vary annually based on City Council priorities and approved by the City Council.

D. Carryover of Funds

Any money raised by the Parcel Tax, including interest accrued thereon, that remains unencumbered at the end of any fiscal year may only be used in a succeeding fiscal year for the purposes stated in this chapter.

4.110.170 Tax Rate

A. For each fiscal year, the special tax rate shall be $0.19 per square foot of improved property.

B. The special tax shall be due in two equal installments in accordance with Los Angeles County Tax Collector procedures.

4.110.180 Adjustments and Refunds

A. Requests for adjustments of this tax may be filed with the director of finance. Upon sufficient evidence of error in the computation of the tax as to any taxpayer, the director of finance or their designee shall cause the tax to be recalculated as to that taxpayer, and shall so advise the Los Angeles County Tax Collector or other appropriate official.

B. Whenever it is alleged that the amount of any tax has been overpaid or paid more than once or has been erroneously or illegally collected or received by the City under this chapter, the refund procedure shall be as follows:

1. No claim for refund of tax payment shall be allowed in whole or in part unless filed with the city clerk within a period of three years from the date of the claimed overpayment, and signed by the taxpayer on behalf of whom it is filed; no class or representative claim shall be permitted. All such claims for refund of the amount of the overpayment must be filed on forms furnished, and in the manner prescribed by the finance department. Refunds may be made solely from the special tax.

2. In the event the director of finance denies a claim for a refund, they shall notify the claimant pursuant to California Government Code Section 913.

C. The director of finance shall have the power to settle claims involving the special tax, and the power to accept and record underpayments or overpayments of such tax. The director of finance shall have the authority to

make refunds of this tax as provided in this chapter.

D. If the County of Los Angeles does not collect any tax due under this chapter, then the director of finance shall have the power and duty to do so. In such cases, an assessment may be made against the owner of a parcel and improvements in the manner provided by law. Any unpaid tax due under this chapter shall be subject to all remedies provided by law.

4.110.190 Oversight, Audit, and Public Disclosure

A. Annual Independent Audit

The special tax shall be subject to an annual independent financial audit conducted by a certified public accountant. The purpose of the audit shall be to confirm that all revenues have been deposited in the special fund and expended solely in accordance with this chapter.

B. Annual Report

The director of finance shall annually provide a report on the receipt and expenditure of revenues collected under this chapter, consistent with Government Code Sections 50075.1(d) and 50075.3. The annual report shall include:

1. Total revenues collected under the Parcel Tax;

2. Total expenditures from the special fund, categorized by capital improvements and operating enhancements;

3. The status of Fire Department capital improvement projects;

4. Verification that Parcel Tax funds supplemented and enhanced Fire Department services above the established baseline service level; and

5. Any fund balances carried forward to the subsequent fiscal year.

The annual report shall be presented to the City Council and posted on the City’s public website.

C. City Council Oversight

The City Council shall exercise oversight of Parcel Tax expenditures by adopting and, as necessary, amending the eligible uses through resolution. The City Council shall ensure all expenditures conform to the allowable uses set forth in this chapter.

D. Timing

The annual independent audit and the annual report shall be completed and made available to the City Council and the public in accordance with Pasadena Charter Section 907.5.

4.110.200 Amendments

The City Council is hereby authorized to amend the provisions of this ordinance without voter approval in any manner which does not extend the special tax to a taxpayer who would otherwise not pay it or increase the amount of the tax beyond the amount authorized by this ordinance. Any amendment to this ordinance which extends the special tax to a taxpayer who would otherwise not pay it or increases the amount of the tax beyond the maximum tax rates authorized by this ordinance may be approved only by a vote of the people of Pasadena.

4.110.210 Severability

If any section, subsection, paragraph, subparagraph or item of this ordinance or the application thereof is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, the validity of the remaining portions of the ordinance, the application thereof, and the tax imposed shall not be affected thereby but shall remain in full force and effect, it being the intention of the City Council and the voters to adopt each and every section, subsection, paragraph, subparagraph or item regardless of whether any other section, subsection, paragraph, subparagraph or item or the application thereof is held to be invalid or unconstitutional.

4.110.220 Effective Date

This ordinance, which establishes the Pasadena Fire, Wildfire, Emergency Preparedness and Response Parcel Tax (adding Chapter 4.110 to Title 4 of the Pasadena Municipal Code), shall be submitted to the voters of the City of Pasadena at the General Municipal Election to be held on November 3, 2026. The special parcel tax described herein shall be levied only if this ordinance is approved by not less than two-thirds of the votes cast by voters voting on the special tax proposal set forth in the ordinance. If approved by the requisite number of votes, Chapter 4.110 shall be incorporated into the Pasadena Municipal Code and become effective as specified in this ordinance.

4.110.230 Debt Service Completion Requirement Upon Recall or Repeal

Notwithstanding any voter-initiated recall, repeal, amendment, or other action affecting this Ordinance, the provisions of this Ordinance authorizing, securing, or otherwise relating to the issuance, repayment, or administration of any indebtedness, including but not limited to bonds, notes, or other financing instruments, shall remain

fully in force and effect until all such indebtedness, together with interest and any premiums or obligations related thereto, has been fully paid, redeemed, or legally defeased. No recall, repeal, amendment, or other voter action shall impair the obligation of the City to fulfill all debt service requirements previously authorized under this Ordinance, and the terms of this Ordinance shall continue to govern such obligations until satisfied in full.

4.110.240 Sunset Provision

The special parcel tax established by this ordinance shall automatically expire 14 years after its effective date, unless extended by a subsequent ordinance approved by the voters of the City of Pasadena. Upon expiration, no further taxes shall be levied pursuant to this chapter, and any remaining funds shall be used exclusively for the purposes authorized herein until expended.

_____
Mark Jomsky, City Clerk

APPROVED AS TO FORM:

_____
Michele Beal Bagneris
City Attorney/City Prosecutor